

## 26STCP02373 26STCP02373

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-09-01

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Case Number: 26STCP02373 Hearing Date: September 1, 2026 Dept: 510

No.

11 - National Default Servicing Corporation v. All Claimants to Surplus Funds

After Trustee's Sale of Real Property Located at: 11637 Ruthelen Street, Los Angeles, CA 90047

Claimant Unifund CCR, LLC's Motion to  
Disburse Surplus Proceeds from Trustee Sale

Claimant

Unifund CCR, LLC ("Unifund") moves to disburse surplus proceeds from a trustee sale.

This

is a trustee's sale action. Petitioner National Default Servicing Corporation is the trustee of a deed of trust executed by Gary D. Hardwell, secured by the property located at 11637 Ruthelen Street, Los Angeles, CA 90047 (the "Property"). The Property was sold at nonjudicial foreclosure sale on November 24, 2025. The sale proceeds exceeded the amount of funds owed under the deed of trust in the amount of \$137,415.72.

Here,

Claimant contends that it has a valid claim to the surplus proceeds because it is a lienholder. Unifund acquired this lien through Pride Acquisitions, LLC, who assigned its rights, title and interest in the judgment to it. (Kenosian Decl., ¶ 3.) Unifund attaches an Abstract of Judgment recorded with the County of Los Angeles. (See Kenosian Decl., Ex. E.) No parties opposed this motion.

This

motion is premature. There is no evidence that Petitioner has deposited the surplus proceeds with the clerk. The Court did not sign and enter the proposed order Petitioner submitted on June 25, 2026. "Within 90 days after deposit with the clerk, the court shall consider all claims filed at least 15 days before the date on which the hearing is scheduled by the court, the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein." (Civ. Code, § 2924j(d).)

Therefore,

once the proceeds are deposited, any potential claimants may file a motion to disburse surplus proceeds. The Court will sign the order Petitioner submitted to allow it to deposit the funds. Claimant may refile this motion after the funds are deposited. The Court will then consider it, alongside any other claims to the funds, at the noticed hearing.

Disposition

Claimant

Unifund CCR, LLC's motion to disburse surplus proceeds from trustee sale is denied without prejudice.